



HIV Policy

PURPOSE

This policy aims to develop a sense of responsibility within the Role players of Landscapers INC - being the Employers, Employees and Unions, the families and communities in which employees live.

SCOPE

The Role players will strive to address the economic and social conditions under which the employees live, which may increase the risk of HIV infection.

In all matters relating to HIV/AIDS the Role players will deal fairly and justly with employees who are living with this epidemic, in accordance with constitutional, regulatory and employment equity principles.

The AIDS programme is a joint responsibility of the Role players (Employers, Employees and Unions), who must UNITE their efforts to deal with this responsibly.

POLICY STATEMENT

UNDERLYING PRINCIPLES

This HIV/AIDS policy is based on the recognition of six principles underlying this document.

The Role players must be able to cope with the additional burden likely to be placed on it by HIV/AIDS and the steps taken to contain it.

The Role players will endeavour to manage this epidemic and reduce the effect on and consequences of HIV/AIDS for the Role player

The Role players will endeavour to promote understanding of and lifelong learning about the HIV/AIDS epidemic.

All Role players commit to this policy, its implementation and sustainability.

In all dealings regarding HIV/AIDS, the Role players will aim to balance the needs of people with HIV/AIDS against other employees as well as those of the employer.

The particular role of STDs in the HIV epidemic shall be recognized by the Role players. The Role players will endeavour to provide all employees with access to STD counselling and treatment and to educate them about the links between STDs and HIV.

If the Role players cannot provide STD services directly, they will attempt to assist employees to obtain such services in the community (e.g. by referral of employees to the local Clinic.)

DEALING WITH HIV/AIDS IN THE WORKPLACE

NON-DISCRIMINATION

- The Role players will not unfairly discriminate against any employees, or applicants for jobs, on the basis of their actual or suspected HIV status, or that of their relatives. Any employees with HIV/AIDS will receive the same consideration in the working environment while symptom free, as any other able-bodied employee. Once the person becomes HIV-ill, the employee will receive the same consideration as any employee with any other illness or incapacity.
- The Role players commit themselves to dealing with employees with HIV/AIDS in the same way as they deal with all other employees. Unfair discrimination, insensitivity, or rejection of employee's known to have HIV/AIDS will not be tolerated. Disciplinary action will be taken against those who breach these Policy Guidelines.
- Employees with HIV /AIDS will be afforded the usual opportunities for career development, such as training, conference attendance as well as promotion opportunities
- There will be no unfair discrimination towards employees with HIV or unfair withholding of such opportunities.
- An employee with HIV/AIDS is expected to meet the same performance requirements that apply to other employees, with reasonable, negotiated accommodation, as described in the Labour Relations Act, regarding incapacity.

HIV TESTING/ SCREENING OF EMPLOYEES AND PROSPECTIVE CANDIDATES

- In line with the principle of non-discrimination, employees and applicants for employment will NOT be required:
- To have an HIV test, whether this is for employment, promotion or merit assessment.
- To disclose their own HIV status, or any member of the family's HIV status.

Further, standard medical tests will not include HIV testing.

- When an employee is too ill to continue working, he/she can be medically boarded after consultation with relevant human resources and medical personnel. This is done in terms of standard boarding procedures.
- All employees may be required to undergo periodic or regular medical check-ups by the employer or by Law, where this relates to an inherent requirement of the job. However, such tests exclude HIV testing.

BENEFITS

- Employees with HIV/AIDS will be eligible for all the standard employee benefits.
- An HIV test shall not be required for admission to any sector-controlled benefit scheme. However, certain non-sector benefit schemes may require pre-benefit HIV testing, resulting in limitations, exclusions or premium loading. In this case, the Role players will inform employees accordingly.
- The employer shall endeavour to use agencies that offer the most favourable benefits, and that are, as far as possible, viable and non-discriminatory, balancing the interests of all parties.

CONFIDENTIALITY

This right to privacy is a basic human right and also applicable to the employment situation. The following broad guidelines should assist the Role players in dealing with sensitive matters, and specifically with HIV/AIDS, STDs, and other personal or health issues.

- The road freight sector is committed to a workplace in which rights and obligations are recognized and where confidentiality and privacy are maintained.
- An employee who is aware that he/she has HIV/AIDS is not required to disclose his/her HIV/AIDS diagnosis to anyone in the work place or to any Role players at any stage.
- The employee may only be required to furnish the employer with a report on the fitness of the employee to do his/her normal job (i.e. Medical personnel can only report on the employee's fitness to work, and not the actual diagnosis).
- All personal details of all employees, including the actual or suspected HIV status of any employee, shall be strictly confidential.
- Any information about an employee's HIV status shall be revealed only with their express written consent, after counselling regarding the rights of and consequences for the employee.
- If an employee with HIV/AIDS decides to disclose his/her diagnosis to a colleague, supervisor or manager, that person should take all reasonable measures to ensure that this information remains private and confidential.
- The Role players will not tolerate any breaches of confidentiality. Any employee who breaches such confidentiality shall be subject to appropriate disciplinary measures, which could include dismissal.

REFUSAL TO WORK WITH EMPLOYEES HIV/AIDS

- No employee shall be entitled to refuse to work with an employee with HIV/AIDS. Any prejudice or discrimination will be dealt with through established disciplinary procedures.
- In the event of an employee/s, refusing to work with someone who is suspected to be, or is known to have HIV/AIDS, suitable persons within the Role players (or consultants) will counsel that employee/s.

- If after such efforts the employee/s still refuses to work alongside someone who has HIV/AIDS, then appropriate disciplinary action may be taken against the employee/s.

COUNSELING AND SUPPORT OF EMPLOYEES WITH HIV/AIDS

- The employer will endeavour to provide all employees with HIV/AIDS with access to suitable counselling. This may be done either through the employer, or via referral to suitable community-based services.
- Where possible, this counselling will also be available for employees whose partners may have HIV/AIDS, or who may have other infected family members.
- The Role players will endeavour to assist employees needing hospital, hospice or other such facilities. To this end, the Role players may contribute donations to such facilities with a view to making them more accessible to employees and their families.
- There are certain measures, which may extend the life span of a person with HIV (e.g. good health care and nutrition). To this end, the Role players will endeavour to provide employees with HIV/AIDS with nutritional supplements (e.g. vitamins) and prophylactic medication where this is feasible. Alternatively, the Role players will make employees aware of the existence and availability of such items, and possibly assist them with gaining access to these.

GRIEVANCE AND DISCIPLINARY PROCEDURES

- An employee with HIV has the same rights, duties and responsibilities and shall be subject to the same rules of disciplinary and performance standards. They will be subject to reasonable accommodation as with all forms of illness or incapacity among all employees.
- Where discrimination or prejudice occurs in consequence of an employee's HIV status, that employee shall have recourse to the usual mechanisms and remedies for redress both with respect to internal remedies and in terms of labour legislation

TERMINATION OF EMPLOYMENT DUE TO ILL HEALTH

- Employees who contract HIV whilst in employment will continue in such employment until medically unfit to work.
- No employee shall be dismissed solely on the basis of HIV.
- As with other severe life limiting or life threatening conditions and permanent disability / employment may only be terminated as a result of HIV/AIDS if and when:
- An employee is unable to carry out their normal work function or if the employee is unable to attend the required number of working days (provided all the sick leave and other appropriate leave is fully utilized).
- Incapacity to do the job will be the major criterion for boarding employees or dismissal. This will be dealt with in accordance with the schedules to the LRA regarding incapacity (e.g. finding suitable alternative employment).
- HIV will not be a reason for unilateral medical boarding and the HIV status of an employee shall not play a role in retrenchment procedures

WORKPLACE AIDS PROGRAMME

INTRODUCTION

The Trucking Against AIDS (TAA) programme is an initiative of the NBC RFI with the purpose of providing, supporting and maintaining an AIDS service infrastructure to Role players, where feasible. The TAA programme is committed to making the programme accessible to the Role players, who can draw upon the TAA manpower, services and expertise.

EDUCATION AND TRAINING

- HIV/AIDS has given rise to unnecessary fears and concerns in workplace settings.
- Education in the workplace will be provided to ensure that all employees under-stand:

- The facts on HIV/AIDS and STDs and the routes of transmission.
 - Their own personal risk of infection with HIV and STD's.
 - Their legal rights with regard to HIV and AIDS, and the rights and duties of people with HIV and AIDS.
 - Role player's policy with regard to HIV and AIDS.
- In order to provide the most suitable education, the Role players will endeavour to train peer educators who will educate employees about HIV/AIDS and related issues.
 - This education will take place at times most suitable to the employer. Where possible, Peer Educators will be used to educate employees during and/or after working hours.
 - To ensure that all employees have access to this information, these educational sessions should be compulsory and in a language and educational level appropriate to each group of employees.

VOLUNTARY HIV TESTING

It is recognized that HIV testing relating to employment is both discriminatory and not effective in keeping HIV out of a company. Therefore, as stated above, HIV testing will not be required.

It is further recognized that there may be employees who would like to know their HIV status for personal reasons, and the Role players will endeavour to make such services available and accessible to employee, either directly or through referral to suitable community-based services.

The Role players will endeavour to make employees aware of services for HIV testing, counselling and treatment.

Where feasible, all services used for HIV testing will be selected on the basis that they comply with the HIV Testing guidelines of the South Africa Medical Association (SAMA) (attached here: Appendix 1).

The NBC's 'Trucking against AIDS' (TAA) Project Team, or other suitable service, can be consulted if the Role players are uncertain of these SAMA testing issues or any other difficulties relating to testing, counselling and medical care.

There may be certain categories of employment where an HIV test may become necessary. In such cases, the personnel department, the employee and medical staff will take the decision, ensuring that this is in line with all current legislation and the SAMA guidelines.

The Role players will endeavour to make employees aware of services for HIV testing, counselling and treatment.

INFECTION CONTROL AT WORK

- All employees will be informed of essential infection control procedures, and, in particular, key employees will be trained to deal with workplace injuries.
- Accessible and well-stocked first aid and infection control kits will be available throughout the workplace and in vehicles. These will include rubber gloves and resuscitation pieces.
- Employees will be informed about this equipment and trained in its correct use.

STD CARE AT WORK

- The particular role of STDs in the HIV epidemic shall be recognized and all employees shall have access to STD counselling and treatment. During this counselling, the links between STDs and HIV will be fully explained.
- Employees with STDs need effective, up-to-date (i.e. 'Syndromic') treatment via doctors or clinics. If the Role players cannot provide such STD services, then the Role players shall endeavour to make such services accessible to all employees, e.g. by referring employees to local services.

PLANNING, SUSTAINABILITY AND INNOVATION

- There is a legacy of failed AIDS interventions and the Role players must be committed to ensuring that the policies and programmes arising out of this document are successful. Monitoring and accountability should therefore be built into the programme.
- To this end a sufficient budget will be necessary to ensure that all the provisions as stated in the policy – access to voluntary testing, counselling, infection control, condoms, STD treatment, education and care – can be implemented and sustained.

RESPONSIBILITIES

Compliance, monitoring and review

Employers are responsible for keeping the workplace safe.

Employees must take an active part in keeping the workplace safe by complying with safety standards, rules and regulations.

The Role players will endeavour to manage this epidemic and reduce the effect on and consequences of HIV/AIDS for the Role player

The Role players will endeavour to promote understanding of and lifelong learning about the HIV/AIDS epidemic.

All Role players commit to this policy, its implementation and sustainability.

RELATED LEGISLATION AND DOCUMENTS

Occupational Health & Safety Act (85 OF 1993)

National Road Traffic Act 93 of 1996

FEEDBACK

The nature of the AIDS epidemic, the law, employee benefit schemes and medical expertise are constantly evolving. Therefore, this policy will be reviewed annually or as needed, to ensure that it keeps pace with any new developments.

The Policy shall be made available to all stakeholders on request and be prominently displayed within the organisation. The SHERQ Management System will form an integral part of Landscapers INC's core business processes. The responsibility of management and all employees to implement this policy effectively ranks equally with their respective responsibilities for services, maintenance, quality, sales, costs, profitability, and similar matters of vital importance to the success of Landscapers INC.

According to the HPCSA Guidelines for Good Practice in the Health care professions

The following are elements of informed consent:

- Consent must be voluntary and without constraint;
- In the case of a HIV test, consent should preferably be written, although consent may be implied;
- Consent must not conflict with good morals or the Constitution;
- The patient must be capable of consenting;
- The patient must give the consent personally, unless proxy consent is applicable;
- The patient should know why the medical practitioner needs the results of the test;
- There should be sufficient information on the diagnosis, proposed treatment, expected benefits, risks, alternative treatment, probable results, etc.;

APPROVAL

CEO Initial and Surname	Signature	Date
J.E.Naidoo		02 January 2026